THE NATIONAL ARCHIVES
LITTERA SCRIPTA MANET
OF THE UNITED STATES 1934

FEDERAL REGISTER

VOLUME 14 NUMBER 28

Washington, Friday, February 11, 1949

TITLE 3—THE PRESIDENT

EXECUTIVE ORDER 10034

FURTHER EXEMPTION OF JOHN MONROE JOHNSON FROM COMPULSORY RETIREMENT FOR AGE

WHEREAS, in my judgment, the public interest requires that John Monroe Johnson, a member of the Interstate Commerce Commission, who was exempted by Executive Order No. 9954 of April 26, 1948, from compulsory retirement for age for an indefinite period of time not extending beyond the expiration of his present term of office as defined in that order, be further exempted from such retirement for age as provided below:

NOW, THEREFORE, by virtue of the authority vested in me by section 204 of the act of June 30, 1932, 47 Stat. 404 (5 U. S. C. 715a), I hereby further exempt the said John Monroe Johnson from compulsory retirement for age for an indefinite period of time not extending beyond the duration of a further term of office as a member of the Interstate Commerce Commission: *Provided*, that, for the purposes of this order, his further term of office shall be considered as expiring upon the appointment and qualification of his successor.

HARRY S. TRUMAN

THE WHITE HOUSE,
February 9, 1949.

[F. R. Doc. 49-1098; Filed, Feb. 10, 1949; 10:21 a. m.]

EXECUTIVE ORDER 10035

DESIGNATING THE HONORABLE LUIS NEGRON-FERNANDEZ AS ACTING JUDGE OF THE DISTRICT COURT OF THE UNITED STATES FOR PUERTO RICO FOR THE YEAR 1949

By virtue of the authority vested in me by section 41 of the act entitled "An Act to provide a civil government for Puerto Rico, and for other purposes," approved March 2, 1917, as amended by section 2 of the act of March 26, 1938, 52 Stat. 118 (48 U. S. C. 863), I hereby designate and authorize the Honorable Luis Negron-Fernandez, Associate Justice of the Supreme Court of Puerto Rico, to perform and discharge the duties of Judge of the District Court of the United States for Puerto Rico, and to sign all necessary papers and records as Acting Judge of the said Court, without extra compensation, during the absence, illness, or other legal disability of the Judge thereof, during the year 1949.

HARRY S. TRUMAN

THE WHITE HOUSE,
February 10, 1949.

[F. R. Doc. 49-1099; Filed, Feb. 10, 1949; 10:55 a. m.]

TITLE 7—AGRICULTURE

Chapter I—Production and Marketing Administration (Standards, Inspections, Marketing Practices), Department of Agriculture

PART 52—PROCESSED FRUITS, VEGETABLES, AND OTHER PRODUCTS (INSPECTION, CERTIFICATION, AND STANDARDS)

UNITED STATES STANDARDS FOR GRADES OF FRUIT PRESERVES (OR JAMS) [1]

On March 18, 1948, notice of proposed rule making was published in the FEDERAL REGISTER (13 F. R. 1408) regarding the revision of the United States Standards for Grades of Fruit Preserves (or Jams) which have been in effect since May 15, 1943. After consideration of all relevant matters presented, including the proposals set forth in the aforesaid notice, the following revised United States Standards for Grades of Fruit Preserves (or Jams) are hereby promulgated to become effective under the authority contained in the Department of Agriculture Appropriation Act, 1949 (Pub. Law 712, 80th Cong., approved June 19, 1948):

§ 52.333 *Fruit preserves (or jams).* (a) "Fruit preserves (or jams)" means preserves or jams as defined in the definitions and standards of identity for preserves, jams (21 CFR, Cum. Supp.,

[1] The requirements of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.

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